

Summary of Cover

Commercial Combined & Media Liability
15 Sections of Cover – Property, Liability,
Production & Media
Including new Management Liability and
Cyber sections



WORDING: TMHCC Media Combined 0526

SUMMARY OF COVER

This is a guide to the cover given by the policy. It does not cover every provision of the policy wording, but your broker will be happy to discuss it with you in more detail. You should read the policy and the additional clauses for full details of the terms and conditions. This Policy is a commercial insurance product designed for business customers and is not suitable for consumers.

SECTION 1 – BUSINESS “ALL RISKS”

Accidental physical loss of or damage to buildings, contents, stock and all other business property at the Premises, on an “all risks” basis. Information Technology equipment and Breakdown cover (previously a standalone section) is now incorporated here.

Key features of the cover

- Day One Uplift and Capital Additions / Acquisitions
- Customers' Goods
- Removal of Debris and Fire Extinguishing Expenses
- Trace and Access; Drain Clearance
- Temporary Removal and Transit
- Exhibitions
- Replacement of Locks; Theft Damage to Buildings
- Leased and Rented Premises
- Architects', Surveyors' and Engineers' Legal Fees
- Inadvertent Omission to Insure
- European Union and Public Authorities
- Information Technology equipment Breakdown (incorporated)

Main exclusions

- Excluded Causes and Excluded Property
- Wear, tear and gradual deterioration
- Cessation of cover where premises unoccupied

SECTION 2 – PROPERTY & EQUIPMENT “ALL RISKS”

“All risks” cover for technical equipment, props, sets and wardrobe, fine arts and specified articles within the Geographical Limits. This section has been renamed and expanded (formerly “Production Property”) to absorb production property and technical / IT equipment.

Key features of the cover

- Technical Equipment and Artists' Equipment
- Fine Arts
- Transit and Exhibition Extensions
- Automatic Reinstatement
- Loan Property Insured
- Marine and Declared General Average
- Brands and Labels; Involuntary Betterment
- Customs Duty

Optional cover

- Hired-in Property; Hired-out Property
- Technical Equipment Hired In / Hired Out
- Mechanical and Electrical Breakdown

Main exclusions

- Exclusions applicable to Technical Equipment
- Exclusions applicable to Props, Sets and Wardrobe
- Exclusions applicable to Specified Articles
- Property left in an unattended vehicle (subject to conditions)

SECTION 3 – BUSINESS INTERRUPTION “ALL RISKS”

Loss of gross profit, gross revenue, rent receivable and increased cost of working following interruption of the Business by an insured Incident.

Key features of the cover

- Denial of Access
- Customers and Suppliers
- Public Utilities
- Specified Illness and Miscellaneous Contingencies
- Alternative Trading; Automatic Reinstatement
- Exhibition Loss of Expenses and Exhibition Sites
- Professional Accountants
- Payments on Account

Optional cover

- Contract Sites

- Denial of Access (Non-Damage)
- Goods in Transit
- Public Utilities – Terminal Ends
- Flexible Business Interruption Limit

Main exclusions

- Loss not resulting from an insured Incident
- Trends and circumstances adjustments

SECTION 4 – TERRORISM

Loss of or damage to Property Insured, and resulting Business Interruption, caused by an act of Terrorism within the Territorial Limits.

Key features of the cover

- Aligns with the Property and Business Interruption sections
- Automatic Reinstatement

Main exclusions

- Nuclear installations and reactors
- Cyber / Virus and Denial of Service attack
- War and related perils
- Burden of proof on the Insured where excluded

SECTION 5 – EMPLOYERS' LIABILITY

The Insured's legal liability for bodily injury or disease sustained by Employees arising out of and in the course of the Business (limit of indemnity as required under the Employers' Liability (Compulsory Insurance) Act).

Key features of the cover

- Indemnity to Principals
- Additional Insured Parties
- Criminal Prosecution Defence Costs
- Data Protection Act
- Unsatisfied Court Judgments

Main exclusions

- Motor Insurance (where compulsory motor insurance applies)
- Offshore work
- Workers' Compensation

- Asbestos
- Terrorism

SECTION 6 – PUBLIC LIABILITY

The Insured's legal liability to pay Compensation for accidental bodily injury to third parties and accidental loss of or damage to third-party property arising from the Business.

Key features of the cover

- Indemnity to Principals; Additional Insured Parties
- Cross Liabilities
- Defective Premises Act 1972
- Legionella Liability
- Custody or Control
- Data Protection Act
- Overseas Personal Liability
- Motor Vehicle Contingent Liability
- Criminal Prosecution Defence Costs

Main exclusions

- Abuse
- Advice and Professional Negligence
- Asbestos; Pollution
- Products
- Contractual Liability
- Defective Workmanship
- Medical Malpractice
- Vehicles, Vessels or Craft
- Hazardous Activities
- Worldwide Jurisdiction (unless agreed)

SECTION 7 – PRODUCTS LIABILITY

The Insured's legal liability to pay Compensation for accidental bodily injury or property damage caused by products sold, supplied or distributed in the course of the Business.

Key features of the cover

- Criminal Prosecution Defence Costs

- Cross Liabilities

Main exclusions

- Damage to Products Supplied
- Defective Workmanship
- North American Exports
- Asbestos; Pollution
- Aircraft / Watercraft Products
- Food and Drink
- Advice and Professional Negligence
- Contractual Liability
- Worldwide Jurisdiction (unless agreed)

SECTION 8 – MONEY

Loss of money in transit, on the premises and in safes or strongrooms (Sub-Section 1), together with Personal Assault benefits for insured persons following robbery or attempted robbery (Sub-Section 2).

Key features of the cover

- Loss of Keys
- Personal Assault benefits – death and disablement

Main exclusions

- Shortage due to error or omission
- Breach of carryings / security conditions
- Failure to keep required records

SECTION 9 – GOODS IN TRANSIT

Damage to the Property Insured whilst in transit by any insured method of conveyance within the Geographical Limits.

Key features of the cover

- Tools and Samples
- Clothing and Personal Effects
- Tarpaulins, Sheets and Ropes
- Debris Removal, Trans-shipment and Recovery Charges

Main exclusions

- Excluded Property

- Failure to take reasonable precautions

SECTION 10 – LOSS OF LICENCE

Loss in trade value or net profit following the forfeiture, suspension or refusal of renewal of the Insured's premises licence, other than for reasons within the Insured's control.

Key features of the cover

- Cover triggered on forfeiture, suspension or non-renewal of the Licence

Main exclusions

- Failure to comply with claims conditions
- Loss arising from replacement of the licensee

SECTION 11 – PRODUCTION INDEMNITY & MULTIMEDIA “ALL RISKS”

Additional expenditure and loss incurred as a result of the interruption, postponement, cancellation or abandonment of an insured Production.

Key features of the cover

- Agency and Talent Costs
- Archive Material
- Automatic Reinstatement
- Storage

Main exclusions

- Rushes and Duplicates
- Pre-Filming Testing and Processing
- Production Planning
- Geographical Limit restrictions

SECTION 12 – MEDIA LIABILITY

Civil liability arising from the Insured's Media Business Services – including defamation, infringement of intellectual property and breach of confidentiality – written on a claims-made basis. Insuring clauses include Indemnity, Legal Defence Costs, Rectification, Irrecoverable Fees, Data Protection Defence Costs, Reputation Management, Withdrawal of Content and IP-prosecution costs.

Key features of the cover

- Joint Ventures

- Indemnity to Principals
- Mergers and Acquisitions
- Change of Control provisions
- Reputation Management and Withdrawal of Content
- Compensation for Court Attendance

Main exclusions

- Claims or circumstances known at inception
- Collection of private data without consent
- Bodily injury / property damage
- Dishonesty and deliberate acts
- Contractual liability
- Patents
- Insolvency / bankruptcy of the Insured
- Fines and penalties
- Asbestos
- Employers' liability and claims by Employees

SECTION 13 – COMMERCIAL LEGAL EXPENSES

Legal Costs and Expenses (including appeals and certain compensation awards) following an Insured Event – covering employment disputes, contract, property, tax and related matters – up to the limit stated in the Schedule, with access to legal, tax, redundancy and counselling helplines.

Key features of the cover

- Freedom to choose an Appointed Advisor (once proceedings are issued)
- Legal and Tax advice helpline
- Redundancy Assistance helpline
- Identity Theft Resolution
- Counselling Assistance

Main exclusions

- Matters without reasonable prospects of success
- Matters arising before cover inception
- Fraudulent claims or claims tainted by dishonesty
- Costs incurred without consent

SECTION 14 – MANAGEMENT LIABILITY INSURANCE (NEW)

Directors', officers' and corporate management liability, written on a claims-made basis. Insuring clauses: A. Directors' and Officers' Liability; B. Company Reimbursement; C. Corporate Liability; and D. Company Employment Practice Liability.

Key features of the cover

- Defence Costs and Investigation Costs
- Discovery Period
- Cover for Outside Directorships
- Change in Control provisions
- Employment Practice Liability cover

Main exclusions

- Prior and pending claims / known circumstances
- Dishonest, fraudulent or criminal conduct (once established)
- Bodily injury and property damage
- Insured v Insured claims (subject to carve-backs)
- Pollution

SECTION 15 – CYBERGUARD™ (CYBER LIABILITY) (NEW)

Comprehensive first-party cyber and third-party cyber liability cover, written on a claims-made basis. Third-party insuring clauses: Multimedia Liability; Security and Privacy Liability; Privacy Regulatory Defence and Penalties; PCI DSS Liability; and Bodily Injury and Property Damage Liability.

Key features of the cover

- First-party: Breach Event Costs and BrandGuard
- First-party: System Failure and Data Recovery
- First-party: Non-Physical Business Interruption
- First-party: Cyber Extortion and Cyber Crime
- First-party: Financial Fraud, Phishing Fraud, Telecommunications and Utilities Fraud
- First-party: Bricking Loss; Reward Expenses; Court Attendance Costs

Main exclusions

- War and failure of core infrastructure
- Bodily injury and property damage (save where written back)
- Prior known incidents or circumstances
- Betterment / upgrade costs

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